SOFTWARE-AS-A-SERVICE SUBSCRIPTION AGREEMENT

This Software-as-a-Service Subscription Agreement (the "**Agreement**") is entered into as of September 8, 2026 (the "**Effective Date**") by and between **Lumina Learning Systems Inc** (the "**Supplier**") and **Arcadia Retail Inc.**, a retailer headquartered in the United States (the "**Customer**"). The Supplier and the Customer are each a "**Party**" and together the "**Parties**".

1. DEFINITIONS

"**Customer Data**" means all data, content and information submitted to the Services by or on behalf of the Customer, including Personal Data. "**Personal Data**" means information relating to an identified or identifiable individual that is processed through the Services. "**Services**" means the Supplier's hosted learning-management software platform, as made available to the Customer under this Agreement, together with related standard support. "**Documentation**" means the Supplier's then-current user guides for the Services. "**Fees**" means the fees payable under Section 4. "**Security Incident**" means a confirmed breach of the Supplier's security leading to unauthorised access to or disclosure of Customer Data in the Supplier's possession.

2. SERVICES AND LICENCE

2.1 Subject to this Agreement, the Supplier grants the Customer a non-exclusive, non-transferable, non-sublicensable right during the Term to access and use the Services for the Customer's internal business purposes, in accordance with the Documentation.

2.2 The Customer shall not, and shall not permit others to: (a) copy, modify, reverse engineer or create derivative works of the Services; (b) resell, sublicense or provide the Services to third parties; (c) use the Services to build a competing product; (d) interfere with the integrity or performance of the Services; or (e) use the Services in violation of applicable law.

2.3 The Customer is responsible for its users' compliance with this Agreement, for the accuracy and lawfulness of Customer Data, and for maintaining the confidentiality of access credentials. The Supplier may modify the Services from time to time, provided that it does not materially reduce their core functionality.

2.4 The Supplier may suspend access to the Services where reasonably necessary to prevent a security threat, to perform emergency maintenance, or where the Customer is in material breach, and shall restore access promptly once the cause is resolved.

3. TERM AND RENEWAL

3.1 This Agreement commences on the Effective Date and, unless terminated earlier in accordance with its terms, continues until September 8, 2028 (the "**Initial Term**"), being a period of twenty-four (24) months.

3.2 Following the Initial Term, this Agreement renews automatically for successive periods of twelve (12) months (each a "**Renewal Term**" and, together with the Initial Term, the "**Term**")

unless either Party gives the other at least sixty (60) days' written notice of non-renewal before the end of the then-current term.

4. FEES AND PAYMENT

4.1 The Customer shall pay the Supplier annual Fees of USD 275,000, giving a total contract value for the Initial Term of USD 550,000. Fees for any Renewal Term shall be those then in effect unless otherwise agreed in writing.

4.2 The Supplier shall invoice the Fees in accordance with the commercial schedule agreed by the Parties. The Customer shall pay each undisputed invoice within thirty (30) days of receipt of a valid invoice.

4.3 The Customer shall notify the Supplier in writing of any good-faith dispute regarding an invoice, with reasonable detail, before the due date, and shall pay all undisputed amounts on time. The Parties shall work in good faith to resolve disputes promptly.

4.4 Overdue undisputed amounts may bear interest at the lesser of one percent (1%) per month and the maximum rate permitted by law, and the Supplier may suspend the Services on written notice if undisputed amounts remain unpaid after the due date. Fees are non-cancellable and non-refundable except as expressly stated in this Agreement.

4.5 Fees are exclusive of sales, use, value-added and similar taxes, which the Customer shall bear, excluding taxes on the Supplier's net income.

5. SERVICE LEVELS

5.1 The Supplier shall use commercially reasonable efforts to make the Services available at least 99.0% of the time in each calendar month, excluding downtime resulting from scheduled maintenance, force majeure, the Customer's or its users' acts or omissions, third-party networks or services outside the Supplier's control, and suspension permitted by this Agreement.

5.2 The Supplier shall notify the Customer of a Security Incident within ninety-six (96) hours after the Supplier confirms the Security Incident, and shall take reasonable steps to investigate and mitigate it.

5.3 The Customer's sole and exclusive remedy, and the Supplier's entire liability, for any failure to meet the service levels in this Section is the Customer's right to request a reasonable service remedy and, for repeated material failure, to terminate under Section 12.

6. CUSTOMER DATA AND DATA PROTECTION

6.1 The Customer acknowledges that the Services involve the processing of Personal Data of the Customer's customers and employees. As between the Parties, the Customer retains all rights in Customer Data and grants the Supplier a non-exclusive licence during the Term to host, process and use Customer Data solely to provide, secure and support the Services.

6.2 The Customer is responsible for establishing a lawful basis for, and providing any notices and obtaining any consents required in respect of, its collection and provision of Personal Data to the Supplier.

6.3 The Supplier shall maintain administrative, technical and physical safeguards appropriate to the nature of the Customer Data and shall process Personal Data only on the Customer's documented instructions as given through the Customer's use and configuration of the Services, except as required by law. The Supplier may use subcontractors in providing the Services and remains responsible for their performance as provided in this Agreement.

6.4 The Supplier may use aggregated and de-identified data derived from the use of the Services to operate and improve its products, provided that such data does not identify the Customer or any individual.

6.5 Upon expiry or termination, the Supplier shall, on the Customer's written request made within a reasonable period, make Customer Data available for export, after which the Supplier may delete it in accordance with its standard retention practices.

7. INTELLECTUAL PROPERTY

7.1 The Supplier and its licensors retain all right, title and interest in the Services, the Documentation, and all improvements, enhancements and derivatives of them, together with all related intellectual property rights. No rights are granted to the Customer other than those expressly stated.

7.2 The Customer retains all right, title and interest in Customer Data. If the Customer provides feedback regarding the Services, the Supplier may use it without restriction or obligation.

8. CONFIDENTIALITY

8.1 "**Confidential Information**" means non-public information disclosed by one Party (the "**Discloser**") to the other (the "**Recipient**") that is marked confidential or that a reasonable person would understand to be confidential, including, in the case of the Customer, Customer Data, and, in the case of the Supplier, the Services, Documentation, pricing and security information. It excludes information that the Recipient can show is or becomes public without breach, was lawfully known to it beforehand, is lawfully received from a third party without restriction, or is independently developed without use of the Discloser's information.

8.2 The Recipient shall use Confidential Information only to perform or exercise rights under this Agreement, shall protect it with at least reasonable care, and shall not disclose it except to its employees, contractors and advisers who need to know it and are bound by equivalent obligations, or as required by law (with prompt notice to the Discloser where lawful).

8.3 The obligations in this Section survive for two (2) years after this Agreement ends.

9. WARRANTIES AND DISCLAIMERS

9.1 The Supplier warrants that, for thirty (30) days from the Effective Date (the "**Warranty Period**"), the Services will perform materially in accordance with the Documentation. The Customer's sole and exclusive remedy for breach of this warranty is for the Supplier to use

reasonable efforts to correct the non-conformity or, if it cannot do so within a reasonable time, for either Party to terminate the affected Services and the Supplier to refund prepaid Fees for the period after termination.

9.2 Each Party warrants that it has the authority to enter into this Agreement.

9.3 EXCEPT AS EXPRESSLY STATED IN THIS SECTION 9, THE SERVICES AND DOCUMENTATION ARE PROVIDED "AS IS" AND "AS AVAILABLE", AND THE SUPPLIER, TO THE FULLEST EXTENT PERMITTED BY LAW, DISCLAIMS ALL WARRANTIES, CONDITIONS AND REPRESENTATIONS, WHETHER EXPRESS, IMPLIED, STATUTORY OR OTHERWISE, INCLUDING ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, NON-INFRINGEMENT, AND ANY WARRANTIES ARISING FROM COURSE OF DEALING OR USAGE OF TRADE. THE SUPPLIER DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE OR SECURE FROM ALL UNAUTHORISED ACCESS, THAT ALL DEFECTS WILL BE CORRECTED, OR THAT THE SERVICES WILL MEET THE CUSTOMER'S REQUIREMENTS OR ACHIEVE ANY PARTICULAR BUSINESS OUTCOME. THE SUPPLIER IS NOT RESPONSIBLE FOR CONTENT PROVIDED BY THE CUSTOMER OR THIRD PARTIES, OR FOR THIRD-PARTY SERVICES, INTEGRATIONS OR THE INTERNET.

10. INDEMNIFICATION

10.1 The Supplier shall defend the Customer against any third-party claim alleging that the Customer's authorised use of the Services infringes a third party's intellectual property rights, and shall pay damages and costs finally awarded or agreed in settlement, provided the Customer gives prompt written notice, sole control of the defence and settlement, and reasonable cooperation. The Supplier has no obligation to the extent a claim arises from Customer Data, modification not made by the Supplier, combination with items not supplied by the Supplier, use contrary to the Documentation or this Agreement, or continued use after the Supplier has made available a non-infringing alternative. If a claim arises or is likely, the Supplier may procure the right to continue use, modify the Services, or terminate the affected Services and refund prepaid Fees for the unused period. This Section states the Supplier's entire liability and the Customer's exclusive remedy for infringement claims.

10.2 The Customer shall defend and indemnify the Supplier against any third-party claim arising from Customer Data, the Customer's collection or provision of Personal Data, or the Customer's use of the Services in breach of this Agreement or applicable law, subject to the same procedural conditions as in Section 10.1.

11. LIMITATION OF LIABILITY

11.1 TO THE FULLEST EXTENT PERMITTED BY LAW, EACH PARTY'S AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY OR OTHERWISE, SHALL NOT EXCEED 0.5 TIMES THE FEES PAID OR PAYABLE IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

11.2 TO THE FULLEST EXTENT PERMITTED BY LAW, NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, BUSINESS, GOODWILL, ANTICIPATED

SAVINGS, OR DATA, COSTS OF PROCUREMENT OF SUBSTITUTE SERVICES, OR BUSINESS INTERRUPTION, HOWEVER ARISING AND EVEN IF ADVISED OF THE POSSIBILITY OF SUCH LOSS.

11.3 The limitations in this Section apply to all claims in aggregate, regardless of the number of claims, and survive any failure of essential purpose of a limited remedy. Nothing in this Agreement limits liability that cannot lawfully be limited, or the Customer's obligation to pay Fees due. The Parties acknowledge that the Fees reflect this allocation of risk.

12. TERMINATION

12.1 Neither Party may terminate this Agreement for convenience. This Agreement may be terminated only for cause in accordance with this Section.

12.2 Either Party may terminate this Agreement by written notice if the other Party commits a material breach and fails to remedy it within thirty (30) days after written notice describing the breach in reasonable detail, or if the other Party becomes insolvent, makes a general assignment for the benefit of creditors, or becomes subject to bankruptcy or similar proceedings that are not dismissed within a reasonable period.

12.3 Upon termination or expiry: (a) the Customer's rights to use the Services cease; (b) the Customer shall pay all Fees accrued or due up to the effective date of termination, and, where the Supplier has not materially breached, Fees for the remainder of the then-current term shall remain payable; and (c) each Party shall return or destroy the other's Confidential Information on request, subject to Section 6.5.

12.4 Sections 1, 4 (as to accrued amounts), 6.4, 7, 8, 9.3, 10, 11, 12.3, 13 and 14, and any other provisions which by their nature should survive, survive termination or expiry.

13. GENERAL

13.1 **Governing Law and Venue.** This Agreement and any dispute arising out of or relating to it are governed by the laws of Massachusetts, without regard to conflict-of-laws principles. The state and federal courts located in Massachusetts have exclusive jurisdiction, and each Party submits to them.

13.2 **Assignment.** The Customer may not assign or transfer this Agreement or any rights under it without the Supplier's prior written consent, which may not be unreasonably withheld. The Supplier may assign this Agreement to an affiliate or to a successor to all or substantially all of its relevant business upon written notice. Any purported assignment in breach of this Section is void.

13.3 **Force Majeure.** Neither Party is liable for delay or failure to perform (other than payment obligations) caused by events beyond its reasonable control, including natural disaster, war, terrorism, labour disputes, utility or internet failures, governmental action, and third-party hosting or network failures.

13.4 **Notices.** Notices must be in writing and delivered by hand, by recognised courier, or by email with confirmation of transmission, to the address a Party designates in writing for that purpose, and are effective on receipt.

13.5 **Relationship; Third Parties.** The Parties are independent contractors. No third party has rights to enforce this Agreement.

13.6 **Publicity.** Neither Party shall issue press releases about this Agreement without the other's consent, except that the Supplier may identify the Customer by name as a customer in customer lists.

13.7 **Entire Agreement; Amendment; Waiver; Severability.** This Agreement is the entire agreement of the Parties on its subject matter and supersedes all prior discussions, proposals and understandings. Any purchase-order or similar terms of the Customer are of no effect. Amendments must be in writing signed by both Parties. No waiver is effective unless in writing, and the invalidity of any provision does not affect the remainder, which shall be enforced to the fullest extent permitted. Each Party has reviewed this Agreement with the opportunity to obtain counsel, and no rule of construction against the drafter applies.

13.8 **Counterparts.** This Agreement may be executed in counterparts and by electronic signature, each of which is an original.

14. SIGNATURES

	Arcadia Retail Inc.	**Lumina Learning Systems Inc**
Signature	_____	_____
Name	Helena Cruz	Anika Rao
Title	VP Technology Sourcing	Authorised Signatory
Date	August 29, 2026	September 1, 2026